

19STCV41136 19STCV41136

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Case Number: 19STCV41136 Hearing Date: July 8, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 8, 2026

Case Name: Babaie v. Law Offices of Armand Tinkerian, et al.

Case No.: 19STCV41136

Motion: Motion for Judgment on the Pleadings

Moving Party: Cross-Defendants Matthew Eanet and Eanet P.C.

Responding Party: Unopposed

Notice: OK

Ruling: The Motion for Judgment on the Pleadings is GRANTED.

Cross-Defendants Matthew Eanet and Eanet P.C. to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

On November 14, 2019, Plaintiff Leonard Babaie ("Plaintiff") filed the operative Complaint against Defendants Law Offices of Armand Tinkerian ("Tinkerian Firm"), Armand Tinkerian ("Tinkerian") (jointly, "Tinkerian Defendants"), and DOES 1 to 10 (collectively, "Defendants"). The Complaint asserts a sole cause of action for Legal Malpractice.

On August 24, 2020, Tinkerian Defendants filed a Motion to Compel Arbitration. The matter came for hearing on October 26, 2020; the motion was granted.

On May 17, 2022, Tinkerian filed the operative First Amended Cross-Complaint ("FACC") against Cross-Defendants Richard Lee; Salisian Lee, LLP; Matthew Eanet; Eanet, P.C.; Reza Iraj Gharakhani; Rostow & Auster, LLP; and ROES 1 through 100 (collectively, "Cross-Defendants"), asserting a sole cause of action for Equitable Indemnity.

On May 20, 2022, Cross-Defendants Matthew Eanet and Eanet, P.C. (jointly, "Eanet Cross-Defendants") filed their Answer to the FACC. On June 20, 2022, Cross-Defendants Richard Lee and Salisian Lee, LLP (jointly, "Lee Cross-Defendants") filed their Answer to the FACC. On November 28, 2022, Cross-Defendants Reza Iraj Gharakhani and Rostow & Auster, LLP (jointly, "Gharakhani Cross-Defendants") filed their Answer to the FACC.

On April 21, 2026, Eanet Cross-Defendants filed the instant Motion for Judgment on the Pleadings. Any opposition would have been due June 24, 2026. To date, no opposition has been filed.

DISCUSSION

Applicable Law

A defendant may move for judgment on the pleadings on the grounds that: (1) the court has no jurisdiction of the subject of the cause of action alleged in the complaint; or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438, subd. (c)(1)(B).) *Id.*

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322 [citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216].) *Id.* Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (*Id.* at 321-22.) The parties' ability to prove their respective claims is of no concern. (Cloud, supra, 67 Cal.App.4th 995 at 999.) Though the Court must accept the allegations of the complaint and answer as true (Gerawan Farming, Inc. v. Lyons (2000) 24 Cal.4th 468, 515), it will not do so for "conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts...." (Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc. (2006) 138 Cal.App.4th 1215, 1219-20.) *Id.*

Meet and Confer

Before filing a judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by videoconference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion for judgment on the pleadings..." (Code Civ. Proc., § 439, subd. (a).)

Eanet Cross-Defendants' counsel of record, Rinat Klier Erlich submits a declaration in support of the present motion. (Mot. at 8:1-16 – Erlich Decl.) However, Counsel Erlich's declaration makes no mention of compliance with the meet and confer requirement prior to the filing of the instant motion. (*Id.*) Nevertheless, the Court will exercise its discretion and rule on the

merits below.

Application to Facts

Eanet Cross-Defendants move for judgment on the pleadings regarding the FACC on the grounds that the Court granted its Motion to Deem Request for Admissions (Set One) Admitted against Tinkerian, thus Tinkerian has admitted Eanet Cross-Defendants were not negligent to Babaie in their representation of him in the JM Van Nuys LLC, et al. v. Leonard Babaie, Case No. BC540867 (the "Underlying Action") and has no evidence to support his claims for equitable indemnity against Eanet Cross-Defendants.

Request for Judicial Notice

Eanet Cross-Defendants' request for judicial notice of the Request for Admissions (Set One) nos. 1, 15, 17-19, 22-30 deemed admitted against Tinkerian is GRANTED per Evidence Code Section 452, subdivision (h). (See *Pang v. Beverly Hosp., Inc.* (2000) 79 Cal.App.4th 986, 989–990 ["In addition to the facts pleaded, we may consider matters that may be judicially noticed, including a party's admissions or concessions which cannot reasonably be controverted."].)

Equitable Indemnity

"Equitable indemnity, which 'requires no contractual relationship,' is premised on a joint legal obligation to another for damages'; it is 'subject to allocation of fault principles and comparative equitable apportionment of loss.' " (C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal.App.5th 688, 700.) " 'The elements of a cause of action for [equitable] indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is ... equitably responsible.' " (Id.)

The FACC alleges, inter alia, that during all relevant times Eanet Cross-Defendants represented Plaintiff concurrently alongside Tinkerian in the Underlying Action. (FACC, ¶¶13-20.) Contrary to the information provided and/or plan of success devised by Tinkerian and Eanet Cross-Defendants, Eanet Cross-Defendants failed to follow or execute the plan resulting in a less favorable settlement or recovery in the Underlying Action. (Id., ¶¶21-22, 27.) Eanet Cross-Defendants must reimburse Tinkerian for the damages purported incurred by Plaintiff, which he is required to pay based on shared responsibility. (Id., ¶26.)

However, on April 10, 2026, this Court deemed Eanet Cross-Defendants' Request for Admissions ("RFA") (Set One) admitted against Tinkerian. (Min. Order, 4/10/26 at p. 1; RJN, nos. 1-13.) Accordingly, Tinkerian admits that he was the sole attorney of record for Plaintiff in the Underlying Action and solely responsible for the legal work performed; has no facts supporting Eanet Cross-Defendants' actions or inactions were the cause of any damage claimed by Plaintiff; he has no evidence and/or facts supporting that Eanet Cross-Defendants' breached any duty of care owed to Plaintiff regarding his representation in the Underlying Action; he has no evidence and/or facts supporting that Eanet Cross-Defendants' had any supervisory authority over his representation of Plaintiff in the Underlying Action; he has no evidence and/or facts supporting that Eanet Cross-Defendants' received any portion of legal fees paid by Plaintiff for his representation in the Underlying Action; he showed up thirty minutes late to Plaintiff's deposition in the Underlying Action; and California law bars indemnity claims against successor attorneys like Eanet Cross-Defendants.

Therefore, as a matter of law Tinkerian cannot support his claim for equitable indemnity against Eanet Cross-Defendants.

CONCLUSION

The Motion for Judgment on the Pleadings is GRANTED.

Cross-Defendants Matthew Eanet and Eanet P.C. to give notice.